

51.	Horste v. SC Investments LLC 2023-01302494	Attorney Ali Kamarei and Auto Legal Group, LLC's motion to be relieved as counsel of record for defendant/cross-complainant SC Investments, LLC is GRANTED as it relates to this forum, effective upon the filing of the proof of service of the signed order upon the client. A status conference is set for July 24, 2026 at 9:00 a.m. in Department C28. As SC Investments, LLC cannot appear in this court without counsel, it shall appear the scheduled date with new counsel. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Failure to do so will result in the imposition of sanctions against SC Investments, LLC. Moving Attorney shall provide notice of this ruling.
52.	Jimenez v. Richardson 2025-01519604	Defendant Swish Studios, LLC's (Swish) demurrer to complaint is SUSTAINED, with 10 days leave to amend. <u>7th-9th causes of action for negligent hiring, supervision, and retention.</u> The complaint fails to state facts sufficient to constitute the 7th, 8th, and 9th causes of action for negligent hiring, supervision, and retention. (See CACI No. 426 [elements]; <i>Phillips v. TLC Plumbing, Inc.</i> (2009) 172 Cal.App.4th 1133, 1139-1140 [liability for negligent hiring, supervision, and/or retention is one of direct liability for negligence, not vicarious liability; "[n]egligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes' "; <i>Z.V. v. County of Riverside</i> (2015) 238 Cal.App.4th 889, 902 [plaintiff must establish the employer had prior knowledge of the actor's propensity to do the bad act].) While the complaint alleges "[defendant Darnell K.] Richardson had a known criminal record prior to his employment, which a background check would have revealed" (Compl. ¶ 12), not all criminal histories show a predisposition to commit violent attacks. <u>10th cause of action, negligent infliction of emotional distress (NIED).</u> The complaint fails to state facts sufficient to constitute the 10th cause of action for NIED. (See <i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1071-1074 [a cause of action for NIED is not an independent tort but simply the tort of negligence, the elements of which are the existence of a duty, breach, causation, and damages].) <u>11th cause of action, vicarious liability.</u> The complaint fails to state facts sufficient to allege vicarious liability. Specifically, it fails to allege facts sufficient to show Richardson was acting

		within the course and scope of his employment with Swish at the time of the incident. "Despite the broad range of acts that may give rise to the imposition of vicarious liability, before such liability will be imposed on the employer there must be a connection between the employee's intentional tort and the employee's work." (<i>Perry v. County of Fresno</i> (2013) 215 Cal.App.4th 94, 101 (<i>Perry</i>).) "The law is clear that an employer is not strictly liable for all actions of its employees during working hours. (<i>Farmers Ins. Group v. County of Santa Clara</i> (1995) 11 Cal.4th 992, 1004, 47 Cal.Rptr.2d 478, 906 P.2d 440 (<i>Farmers</i>).) Rather, there must be a causal nexus between the tort and the employee's work, i.e., the tort ... must be engendered by or arise from the work. ([<i>Lisa M. v. Henry Mayo Newhall Memorial Hospital</i> (1995) 12 Cal.4th 291,] 297-298, 48 Cal.Rptr.2d 510, 907 P.2d 358.) 'That the employment brought tortfeasor and victim together in time and place is not enough.' (<i>Id.</i> at p. 298, 48 Cal.Rptr.2d 510, 907 P.2d 358.)" (<i>Perry</i>, at p. 101.) "For a causal nexus to exist 'the incident leading to injury must be an "outgrowth" of the employment [citation]; the risk of tortious injury must be " 'inherent in the working environment' " [citation] or " 'typical of or broadly incidental to the enterprise [the employer] has undertaken [citation]. ' " ' (<i>Lisa M., supra</i>, 12 Cal.4th at p. 298, 48 Cal.Rptr.2d 510, 907 P.2d 358.) In other words, the risk of the tort must be a generally foreseeable consequence of the enterprise. (<i>Id.</i> at p. 300, 48 Cal.Rptr.2d 510, 907 P.2d 358.) If the employee acts out of personal malice unconnected with the employment, the employee is not acting within the scope of employment. (<i>Farmers, supra</i>, 11 Cal.4th at p. 1005, 47 Cal.Rptr.2d 478, 906 P.2d 440.) The mere fact that an employee has an opportunity to abuse facilities or authority necessary to the performance of that employee's duties does not render the employer vicariously liable. (<i>Id.</i> at p. 1006, 47 Cal.Rptr.2d 478, 906 P.2d 440.) A tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work-related events or conditions. (<i>Lisa M., supra</i>, at p. 301, 48 Cal.Rptr.2d 510, 907 P.2d 358.)" (<i>Perry</i>, at pp. 101-102.) Swish shall give notice of this ruling.
53.	Bales v. Belenardo 2021-01201005	Defendant Susan Belenardo's motion to vacate judgment and enter a different judgment is DENIED. Defendant moves under C.C.P. § 663. That section states (in relevant part):